

3 February 2020

223 Cambridge Heath Road, Bethnal Green

in the London Borough of Tower Hamlets

planning application no.PA/19/02094

Strategic planning application stage 1 referral

Town & Country Planning Act 1990 (as amended); Greater London Authority Acts 1999 and 2007; Town & Country Planning (Mayor of London) Order 2008

The proposal

Demolition of the existing building and redevelopment of the site to provide a new 10-storey building comprising 10,390 sq.m. of office space (10% affordable) alongside associated ancillary facilities.

The applicant

The applicant is **Bethnal Green Regeneration Ltd**, and the architects are **HKR Architects**.

Strategic issues

Principle of development: The redevelopment of the site to provide office floorspace is acceptable in light of the site's location within an Opportunity Area and the local policy framework. The Council must robustly secure the affordable workspace provision as part of any future s.106 agreement (paragraphs 11-14).

Urban design: The proposed design is broadly supported, and the Council is encouraged to secure the detailed submission of key facing materials. The applicant should seek to improve the appearance and activation of the northern elevation. The proposals would result in less than substantial harm to the Bethnal Green Gardens Conservation Area which could be outweighed by the public benefits delivered by the scheme (paragraphs 15-24).

Sustainable development: Further information and justification is required in respect of energy and urban greening (paragraphs 25-27).

Transport: The Council is required to secure conditions/obligations in respect to; a delivery and servicing plan, a construction management plan, a travel plan, vehicle parking, cycle parking, permit free scheme and healthy streets initiatives. The applicant must provide further information in respect to trip generation (paragraphs 28-34).

Recommendation

That Tower Hamlets Council be advised that while the application is generally acceptable in strategic planning terms the application does not comply with the London Plan, for the reasons set out in paragraph 38 of this report; but that the possible remedies set out in that same paragraph of this report could address these deficiencies.

Context

1 On 30 December 2019 the Mayor of London received documents from Tower Hamlets Council notifying him of a planning application of potential strategic importance to develop the above site for the above uses. Under the provisions of The Town & Country Planning (Mayor of London) Order 2008 the Mayor must provide the Council with a statement setting out whether he considers that the application complies with the London Plan, and his reasons for taking that view. The Mayor may also provide other comments. This report sets out information for the Mayor's use in deciding what decision to make.

2 The application is referable under the following Category of the Schedule to the Order 2008:

- 1C.1(c) *“Development which comprises or includes the erection of a building of more than 30 metres high and is outside the City of London”.*

3 Once Tower Hamlets Council has resolved to determine the application, it is required to refer it back to the Mayor for his decision as to whether to direct refusal; take it over for his own determination; or allow the Council to determine it itself.

4 The Mayor of London's statement on this case will be made available on the GLA website www.london.gov.uk.

Site description

5 The 0.105 hectare site falls on the west side of Cambridge Heath Road within the boundary of the City Fringe Opportunity Area. The site was formerly in use for light industrial purposes and now houses an artist studio. The site is surrounded by a mix of uses including; a student accommodation block to the west, Bethnal Green Gardens to the east and a hotel to the south. There are also a range of retail and commercial uses fronting Cambridge Heath Road. The site is in close proximity to the Bethnal Green Garden conservation area which falls immediately to the east of the plot beyond Cambridge Heath Road.

6 The site is located at the junction of Three Colts Lane and Cambridge Heath Road. The nearest section of Transport for London Road Network is Mile End Road, located approximately 540 metres to the south of the site. Located on Mile End Road is Cycle Superhighway 2 (CS2), which provides a strategic cycle route between Stratford and Aldgate. The closest London Underground station to the site is Bethnal Green, located 260 metres to the north of the site. Approximately 300 metres to the west of the site is Bethnal Green Train Station, which provides access to London Overground services. Three bus routes are within close proximity to the site. The site has a Public Transport Access Level (PTAL) of 6b (on a scale of 0 to 6b where 6b represents the most accessible).

Details of the proposal

7 Demolition of the existing building and redevelopment of the site to provide a new 10-storey building comprising 10,390 sq.m. of office space (10% affordable) alongside associated ancillary facilities.

Case history

8 A pre-planning application meeting was held between the applicant and the Greater London Authority on a similar proposal at the above site. An initial meeting was held on 10 April 2019. GLA officers concluded that office-led redevelopment of the site could be supported subject to clarification on the sites existing uses. The applicant was advised to ensure that any future application addressed concerns in respect to; urban design; inclusive access; sustainable development; and, transport.

Strategic planning issues and relevant policies and guidance

9 For the purposes of Section 38(6) of the Planning and Compulsory Purchase Act 2004, the development plan in force for the area is the 2020 Tower Hamlets Local Plan 2031: Managing Growth and Sharing Benefits and the 2016 London Plan (Consolidated with Alterations).

10 The following are relevant material considerations:

- The National Planning Policy Framework and National Planning Practice Guidance.
- The London Plan Intend to Publish version (December 2019).
- City Fringe opportunity area planning framework.
- Land use *London Plan;*
- Urban design *London Plan; Shaping Neighbourhoods: Character and Context SPG;*
- Sustainable development *London Plan; Sustainable Design and Construction SPG; Mayor's Environment Strategy;*
- Transport *London Plan; the Mayor's Transport Strategy.*

Principle of development

11 The site is currently occupied by an artists studio. Policy HC5 of the Mayor's intend to publish London Plan seeks the continued growth and evolution of London's diverse cultural facilities and creative industries which it notes should be supported. These proposals will result in the loss of this existing creative space. The Council should interrogate the engagement with the occupier to determine whether a relocation strategy should be secured by Section 106.

12 London Plan Policy 2.13 identifies the City Fringe/Tech City Opportunity Area as having capacity to accommodate a minimum of 53,000 jobs and 15,000 homes. Policy SD1 of the Mayor's intend to publish London Plan sets an indicative target of 15,500 homes and 50,500 jobs for the Opportunity Area. London Plan Policy 4.2 and Policy E1 of the Mayor's intend to publish London Plan seek improvements to the quality, flexibility and adaptability of office space of different sizes stating planning decisions should support new office provision, refurbishment and mixed-use development. These policies seek to support the provision of office space within appropriate locations with a focus on town centres. GLA officers acknowledge that at a local level the 2020 Tower Hamlets Local Plan recognises that the world-class economic hub of the City of London will expand and opportunities arising from the Tech City and Med City initiatives should be maximised. The plan specifically identifies in relation to Cambridge Heath that the area

will all have a more diverse mix of commercial, cultural, leisure, tourism and night-time activities.

13 The proposals deliver 10,390 sq.m. of office floorspace, 10% of which would be affordable. It should be noted that the site is not located within a town centre however it is within an Opportunity Area which anticipates an increased level of employment and in an area identified in the Local Plan as a suitable location for commercial provision. The proposals would result in a significant uplift in the density of employment uses at the site, the new office uses would be complimentary to the emerging development within Bethnal Green. Given this, the proposal is in conformity with the aspirations of the City Fringe/Tech City planning framework, London Plan and the Mayor's intend to publish London Plan.

14 Policy E3 of the Mayor's intend to publish London Plan identifies that planning obligations may be used to secure affordable workspace in the B Use Class, in areas including the City Fringe at rents maintained below the market rate for that space for a specific social, cultural or economic development. The purpose of this policy (amongst others) is to support start-up and early stage business or regeneration. Policy E8 of the Mayor's intend to publish London Plan identifies sector growth opportunities and clusters with specific reference to the City Fringe, it states that the Tech City cluster should be supported as one of London's nationally-significant office locations to enable entrepreneurs to locate and expand there and to provide the flexibility and range of space that this sector needs, including affordable space. Accordingly, the provision of 1,039 sq.m. (equivalent to 10% of the total offer) of affordable workspace is supported in accordance with the policies outlined above. The Council should robustly secure the affordable workspace provision within the s.106 agreement.

Urban design

Height and massing

15 London Plan Policies 7.1 and 7.4 and Policies D1 and D2 of the Mayor's intend to publish London Plan require development to have regard to the form, function and structure of an area and the scale, mass and orientation of surrounding buildings. The proposed building will comprise 10 storeys with the upper to levels being set back from the building edge. This recess serves to minimise the massing linear views. GLA officers note that the proposed height and massing is in broad conformity with the surrounding urban grain. The massing is further broken down through the inclusion of chamfered corners on Three Colts Lane. The proposed height and massing strategy is supported.

Layout

16 The building line along Cambridge Heath Road appropriately follows the established urban layout that faces out towards Bethnal Green Gardens. The building's office entrance would be at the corner of the plot which preserves the existing arrangement and locates the point of access at a prominent and legible corner chamfer. The lobby which provides access to the staff café and upper levels is accessed from Cambridge Heath Road. The 'spill out space' onto the pavement here is c.5-6 metres wide with public realm landscaping, which is supported. The building line along Three Colts Lane is tight to the footway (pavement width c.2 metres) within the context of

surrounding buildings. Given the tight highway width here the concentration of the buildings main entrance along Cambridge Heath Road is supported.

Architecture

17 The applicant is advancing a simple elevational treatment of brick and bronze powder coated window frames and metal detailing. The elevation treatments and material palette integrates well with the high quality architecture of the area, and includes; degrees of vertical accent, fenestration and a double height façade to respond to the larger scale of the park. GLA officers support the material palette and window reveals. The north flank wall treatment does not prejudice any future proposal at the adjoining site which is welcomed but this should be better articulated. As proposed the north flank provides for a prominent inactive frontage which will be visible along Cambridge Heath Road as the development of the adjacent plot is unknown. The elevational treatment of the north flank should be revised to address this issue.

Heritage and conservation

18 The Planning (Listed Buildings and Conservation Areas) Act 1990 sets out the statutory duties for dealing with heritage assets and conservation areas in planning decisions. In relation to conservation areas, special attention must be paid to the desirability of preserving or enhancing the character or appearance of that area.

19 The NPPF states that when considering the impact of the proposal on the significance of the designated heritage asset, great weight should be given to the assets conservation. Significance can be harmed or lost through alteration or destruction of the heritage asset or development within its setting. Significance is the value of the heritage asset because of its heritage interest, which may be archaeological, architectural, artistic or historic, and may derive from a heritage asset's physical presence or its setting. Where a proposed development will lead to 'substantial harm' to or total loss of the significance of a designated heritage asset, local planning authorities should refuse consent, unless it can be demonstrated that the substantial harm or loss is necessary to achieve substantial public benefits that outweigh that harm or loss. Where a development will lead to 'less than substantial harm', the harm should be weighed against the public benefits of the proposal, including securing its optimum viable use.

20 London Plan Policy 7.8, states that development affecting heritage assets should conserve their significance by being sympathetic to their form, scale, materials and architectural detail. Policy HC1 of the Mayor's Intend to Publish London Plan further specifies that the cumulative impacts from incremental change from development on heritage assets and their setting should be actively managed and that development proposals should avoid harm. GLA officers note that the site is not located within a conservation area nor does it contain any listed buildings. The site is however adjacent to the Bethnal Green Gardens Conservation Area which begins beyond Cambridge Heath Road at the parks boundary and therefore any redevelopment has the potential to impact upon the setting of the Conservation Area. The proposals would remove a low rise two storey former industrial warehouse building and introduce a tall building of significantly greater prominence in local views. The proposals, as discussed above at paragraph 17 would introduce a building which is finished to a high standard with proportions which better reflect the emerging character of Cambridge Heath Road. The

proportions, window reveals and material palette provide for a building which better reflects the existing and emerging context of the site. GLA officers consider any harm to heritage assets to be less than substantial and could be outweighed by the public benefits of the scheme which would be secured as part of the planning permission. These include securing the sites optimum viable use making the most efficient use of land and the provision of 1,039 sq.m. of affordable workspace. Given the low level of harm which would arise, it is considered that the significance of the affected assets would be sustained and therefore conserved. No conflict with Policies 7.8 of the London Plan and Policies HC1 of the London Plan – Intend to Publish version would arise. Nor, given the outcome of the public benefits balance set out above, would there be any conflict with the NPPF.

Fire safety

21 In accordance with Policy D12 of the Mayor's intend to publish London Plan, all major development proposals should be submitted with a Fire Statement, which is an independent fire strategy, produced by a third party, suitably qualified assessor.

Sustainable development

Energy

22 In accordance with the principles of London Plan Policy 5.2 and Policy SI2 of the Mayor's intend to publish London Plan, the applicant has submitted an energy statement, setting out how the development proposes to reduce carbon dioxide emissions. In summary the proposed strategy comprises: energy efficiency measures (including a range of passive design features and demand reduction measures); a communal heat network driven by combined heat and power plant; and, renewable technologies (comprising 114 sq.m. of photovoltaic panels in addition to heat pumps). The approach proposed would exceed the carbon dioxide savings target set out within London Plan Policy 5.2. Whilst the principles of the energy strategy are supported, the applicant must provide additional detail to demonstrate full compliance with the requirements set out in the London and Mayor's intend to publish London Plan. A full technical note has been issued to the applicant which must be responded to in full prior to the Mayor's decision making stage.

Floodrisk and drainage

23 The surface water drainage strategy for the proposed development generally complies with London Plan Policy 5.13 and Policy SI.13 of the Mayor's intend to publish London Plan. The proposed development generally meets the requirements of London Plan Policy 5.15 and Policy SI.5 of the Mayor's intend to publish London Plan. The Applicant should also consider water harvesting and reuse to reduce consumption of wholesome water across the entire development site. This can be integrated with the surface water drainage system to provide a dual benefit.

Urban greening

24 In line with London Plan Policy 5.10 and Policy G1 and G5 of the Mayor's intend to publish London Plan embed urban greening as a fundamental aspect of site and building design. Features such as street trees, green roofs, green walls and rain gardens should all be considered for inclusion. The applicant should calculate the Urban

Greening Factor, as set out in Policy G5 of the Mayor's intend to publish London Plan, and seek to achieve the specified target prior to the Mayor's decision making stage.

Transport

Transport assessment and trip generation

25 The applicant has provided a multi-modal trip generation assessment. Further justification should be provided as to the robustness of this assessment; peak hour trips should be split by public transport modes; London Underground, DLR and bus routes and split by each direction of travel. Subject to further information being provided, contributions towards public transport enhancements may be required in line with Policy T4 of the Mayor's intend to publish London Plan Assessing and mitigating transport impacts.

Healthy streets

26 Policy T2 of the Mayor's intend to publish London Plan expects all development to deliver improvements that support the ten Healthy Streets Indicators. The proposed development will add significantly to footfall on Three Colts Lane, where the existing footway is narrow. Any necessary mitigation identified through the Transport Assessment should be agreed with the Council appropriately secured.

Cycle parking

27 Cycle parking should be provided to be in line with the Mayor's intend to publish London Plan standards, contained within Table 10.2. Cycle parking design should be in accordance with London Cycle Design Standards (LCDS). The applicant is proposing cycle parking in accordance with the minimum standards as set out in the Mayor's intend to publish London Plan. This must be secured as part of any future planning permission as a minimum.

Vehicle parking and access

28 London Plan Policy 6.13 and Policy T6 of the Mayor's intend to publish London Plan require developments to provide the appropriate level of car parking provision. The scheme is proposed to be car free except for the provision of 1 blue badge parking space which is strongly supported. The development should be subject to a permit free agreement.

29 The existing footway crossover on Herald Street should be removed given that access from the carriageway will no longer be needed. This should be secured through a S278 agreement.

Travel, delivery and servicing and construction logistics

30 The Council must agree and appropriately secure a delivery and servicing plan, construction management plan and travel plan. Construction works and delivery and servicing will need careful management to deliver Vision Zero objectives. It is proposed to close off the eastern footway on Herald Street during construction. If this footway is closed, alternative arrangements should be put in place along with appropriate signage.

This should be clearly set out in the Construction Logistics Plan, which should be prepared in accordance with TfL guidance.

Local planning authority's position

31 The Local Planning Authority are currently assessing this application and are yet to identify a target Planning Committee.

Legal considerations

32 Under the arrangements set out in Article 4 of the Town and Country Planning (Mayor of London) Order 2008 the Mayor is required to provide the local planning authority with a statement setting out whether he considers that the application complies with the London Plan, and his reasons for taking that view. Unless notified otherwise by the Mayor, the Council must consult the Mayor again under Article 5 of the Order if it subsequently resolves to make a draft decision on the application, in order that the Mayor may decide whether to allow the draft decision to proceed unchanged, or direct the Council under Article 6 of the Order to refuse the application, or issue a direction under Article 7 of the Order that he is to act as the local planning authority for the purpose of determining the application and any connected application. There is no obligation at this present stage for the Mayor to indicate his intentions regarding a possible direction, and no such decision should be inferred from the Mayor's statement and comments.

Financial considerations

33 There are no financial considerations at this stage.

Conclusion

34 London Plan policies on Opportunity Areas, office uses, urban design, sustainable development and transport are relevant to this application. The application does not comply with the London Plan, for the following reasons but the possible remedies set out below could lead to the resolution of these issues:

- **Principle of development:** The redevelopment of the site to provide office floorspace is acceptable in light of the site's location within an Opportunity Area and the local policy framework. The Council must robustly secure the affordable workspace provision as part of any future s.106 agreement
- **Urban design:** The proposed design is broadly supported and the Council is encouraged to secure the detailed submission of key facing materials. The applicant should seek to improve the appearance and activation of the northern elevation. The proposals would result in less than substantial harm to the Bethnal Green Gardens Conservation Area which could be outweighed by the public benefits delivered by the scheme.
- **Sustainable development:** Further information and justification is required in respect of energy and urban greening.

- **Transport:** The Council is required to secure conditions/obligations in respect to; a delivery and servicing plan, a construction management plan, a travel plan, vehicle parking, cycle parking, permit free scheme and healthy streets initiatives. The applicant must provide further information in respect to trip generation.

for further information, contact GLA Planning Unit (Development Management Team):

Debbie Jackson, Director, Built Environment

020 7983 5000 email Debbie.Jackson@london.gov.uk

John Finlayson, Head of Development Management

020 7084 2632 email John.Finlayson@london.gov.uk

Allison Flight, Deputy Head of Development Management

078 4004 6318 email Alison.Flight@london.gov.uk

Kate Randell, Team Leader – Development Management

020 7983 4783 email Kate.Randell@london.gov.uk

Connaire O’Sullivan, Senior Strategic Planner

020 7983 6589 email Connaire.O’Sullivan@london.gov.uk
